

The Court is aware that the presence or absence of insurance could impact those discussions.

Currently, the Court is not inclined to stay the proceedings. It believes the parties should continue to move forward with discovery – especially given the contentious nature of the discovery proceedings to date – and working toward getting this matter ready for trial. The Court may consider continuing the mandatory settlement conference (and possibly trial) date again if it appears that a resolution of the Ninth Circuit appeal is imminent.

Given the changing circumstances since the filing of the original motion and the Court's initial thoughts outlined above, the Court is open to hearing from the Parties regarding their thoughts on how best to proceed. The Court would also like an update on the status of the Ninth Circuit appeal, especially related to scheduling of argument (if any) and/or any deadlines wherein the Parties expect a ruling from the Ninth Circuit.

The Court notes that an Issue Conference was originally scheduled for 1:30 the same date as the hearing on this motion (Friday, July 10), and that a new Issue Conference date of January 15, 2027 1:30 p.m. in Dept. 32 (in person) was set by the court. **The court meant to vacate the July 10 2026 date when it set the January 15 2027 date, and does so now.**

Conclusion

Defendants' request for a continuance of the trial date is **denied as moot** given that the Court continued the trial date to January 26, 2027, while this motion was pending. The request to stay the matter is also **denied**.

The Issue Conference set for 1:30 p.m. on July 10, 2026 is vacated. The Issue Conference has been set for January 15, 2027 at 1:30 pm in Dept. 32.

Parties are advised to familiarize themselves with Dept. 32's Issue Conference Orders, available on the court's website.

2. 9:00 AM CASE NUMBER: C23-01988
CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST
HEARING ON SUMMARY MOTION
FILED BY: MERCEDES-BENZ USA, LLC
TENTATIVE RULING:

Continued by the Court to August 21, 2026.

3. 9:00 AM CASE NUMBER: C23-02214

CASE NAME: MARIA SILVA VS. ERIC TU

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: TU, ERIC

TENTATIVE RULING:

Defendant Eric Tu ("Defendant") brings the instant motion for summary judgment ("Motion") against the complaint of plaintiff Maria Silva ("Plaintiff").

For the reasons discussed below, the Court **GRANTS** Defendant's Motion.

Legal Standard for Motion for Summary Judgment

Code of Civil Procedure ("CCP") § 437c, subds. (o)(1) and (p)(2) provide the relevant legal standard for deciding Defendant's Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving

party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) “All doubts as to whether there are any triable issues of fact are to be resolved in favor of the party opposing summary judgment.” (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.) The scope of the defendant’s initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Background

Summary of Allegations from the Complaint

On September 1, 2023, Plaintiff filed the instant ten-paragraph complaint (“Complaint”) against Defendant, asserting a claim of premises liability. The Complaint alleges that on September 1, 2021, Plaintiff slipped and/or tripped on a dangerous and/or unsafe and/or defectively designed area. (Complaint, ¶ 5.) It further alleges that Defendant “negligently owned, managed, designed and/or inspected and/or repaired and/or otherwise managed these premises so as to allow the common area walkway for patrons to remain in an unsafe and dangerous condition” (*Id.* at ¶ 6.) Defendants knew or should have known of the dangerous condition in order to fix or warn of the danger but failed to fix or warn the condition. (*Id.* at ¶ 7.) Defendant’s failure caused Plaintiff to be injured and will result in some permanent disability to Plaintiff. (*Id.* at ¶ 8.) Plaintiff was unable to undergo her usual daily activities. (*Id.* at ¶ 10)

Undisputed Material Facts

UMF Nos. 1-4, 6, 7, 8, 12

Plaintiff lived at the building where the incident occurred (the “Property”) since 2007. (Undisputed Material Fact from Plaintiff’s Separate Statement in Support of Opposition [“UMF”] Nos. 1-2.) On September 1, 2021, at around 12:45 pm, Plaintiff exited her residence and descended the outdoor stairwell on what she described as a sunny day. (*Id.*, Nos. 3-4.) The door to exit the Property was held open with a stone base for cigarettes. (*Id.*, No. 6.) Plaintiff tripped over the stone base which was partially holding the door to the outside open. (*Id.*, No. 8.) UMF No. 7 is a picture of the stone base holding the subject doorway open and is not disputed. UMF No. 12 states that “Prior to the subject incident Plaintiff had never tripped over the stone base,” and is not disputed.

The Court will address a number of additional facts Defendant asserts as undisputed that Plaintiff labels "Disputed." For the reasons stated below, the Court finds that the facts are undisputed for purposes of the instant motion.

UMF No. 5

UMF No. 5 provides that "Plaintiff was wearing sunglasses, and her hands were occupied at the time of the subject incident." Plaintiff asserted in response that this is "Disputed in Part that Plaintiff's hands were occupied." (Response to UMF No. 5.) Plaintiff cites her own deposition transcript without any specific pin cites to support her assertion that UMF No. 5 is "Disputed in part." In support of UMF No. 5, Defendant cites to Plaintiff's deposition transcript at p. 16:9-16, 18:25, and 19:1-9, which provide as follows:

p. 16:9-16

9 THE WITNESS: When leaving the building I had
10 my hands occupied, and so I could not open the door, so
11 my right foot -- with my right foot --
12 THE INTERPRETER: The interpreter is going to
13 ask for a repetition.
14 THE WITNESS: My right foot hit or tripped a
15 base that was holding the door. Then I fell, and the
16 frame on my glasses hit my forehead and cut it.

p. 18:25 and 19:1-9

25	Q	You mentioned your hands were occupied. What
Page 19		
1		was occupying your hands at the time?
2	A	I was carrying my bag, and in my right hand I
3		was carrying a can with drink.
4	Q	So in your right hand you were carrying a
5		drink, and then you had your bag in your left hand; is
6		that correct?
7	A	Yes.
8	Q	And what type of bag were you carrying?
9	A	My personal bag.

Plaintiff's purported dispute to the fact that that "her hands were occupied at the time of the incident" is not supported by the evidence and Defendant's assertion that this fact is undisputed is supported by the evidence. The Court will treat UMF No. 5 as undisputed.

UMF No. 9

UMF No. 9 states that “Plaintiff saw the stone base as she descended the stairwell, prior to the subject incident.” Again, Plaintiff states that this fact is “Disputed,” and cites to unspecified “Deposition Transcript Excerpts” from her deposition. (Response to UMF No. 9.) In support of UMF No. 9, Defendant cites to Plaintiff’s deposition transcript at p. 18:1-3, 21:11-13, which provide as follows:

p. 18:1-3

		Page 18
1	MR. BACHICHA: Q	Was the cigarette base
2	visible as you came down the stairs?	
3	A	Yes.

p. 21:11-13

11	Q	Did you see the cigarette holder before you
12	had tripped on it?	
13	A	Yes.

Plaintiff’s purported dispute of the fact that she “saw the stone base as she descended the stairwell prior to the subject incident” is not supported by the evidence and Defendant’s assertion that this is an undisputed fact is supported by the evidence. The Court will treat UMF No. 9 as undisputed.

UMF No. 10

UMF No. 10 provides that “[t]he stone base is usually located in the area wherein the subject incident occurred and is usually propping the door open.” Plaintiff asserts that this is “[d]isputed In Part as the stone base was used to prop open the door for years.” (Response to UMF No. 10.) Plaintiff cites page 33, lines 15-22 of Plaintiff’s deposition as support of its dispute of UMF No. 10. Those lines are as follows:

p. 33:15-22

15 Q -- the ashtray that was inside of the doorway
16 of your building that day, is it always blocking the
17 door or is it sometimes outside the door on the other
18 side?
19 A It's always blocking the door.
20 Q Okay. And your manager, has he visited the
21 building while the ashtray has been blocking the door?
22 A Yes.

Defendant cites page 18, lines 4-8 of Plaintiff's deposition as support of UMF No. 10. Those lines are as follows:

p. 18:4-8

4	Q	Where was the cigarette base usually located?
5	A	In the area where it is.
6	Q	So would the cigarette holder usually be used
7		to prop open the door?
8	A	Yes.

The Court finds that Plaintiff's response is not an actual dispute because "the stone base being used to prop open the door for years" does not contradict that it was "usually located in the area wherein the subject incident occurred" and "usually propping the door open." Further, Defendant's cited evidence directly supports the proposition. The Court will treat UMF No. 10 as undisputed.

UMF No. 11

UMF No. 11 provides that "Plaintiff had seen the stone base prior to the subject incident located wherein the subject incident occurred and had never seen the stone base located in any other location." Plaintiff disputes this in part "because the stone base urn was placed in different positions to prop open the self-closing security door." (Response to UMF No. 11.) Plaintiff cites page 33, lines 15-22 of Plaintiff's deposition as support. Those lines are as follows:

p. 33:15-22

15 Q -- the ashtray that was inside of the doorway
16 of your building that day, is it always blocking the
17 door or is it sometimes outside the door on the other
18 side?
19 A It's always blocking the door.
20 Q Okay. And your manager, has he visited the
21 building while the ashtray has been blocking the door?
22 A Yes.

Defendant cites page 18, lines 9-16 of Plaintiff's deposition as support for UMF No. 11. Those lines are as follows:

p. 18:9-16

9 Q Before this incident occurred had you ever
10 seen this cigarette base holder before?
11 A Yes.
12 Q And where had you seen the cigarette holder
13 before?
14 A In that location in front of the door.
15 Q Had you ever seen it in any other location?
16 A No.

Plaintiff's cited evidence does not create a dispute with UMF No. 11. Further, Defendant's cited evidence supports the proposition. The Court will treat UMF No. 11 as undisputed.

UMF No. 13

UMF No. 13 provides that "[a]t no time prior to the subject incident was Defendant Eric Tu made aware of any issues with the stone base object." Plaintiff states that this fact is "Disputed: Defendant," and does not provide any additional information. (Response to UMF No. 13.) In support of UMF No. 13, Defendant cites to the Declaration of Eric Tu, which provides as follows:

26 5. At no time prior to the subject incident was I made aware of any dangerous
27 wherein the subject incident occurred.

Again, Plaintiff failed to cite any evidence supporting her asserted that this fact is disputed. Defendant's proposition is supported by the evidence. The Court will treat UMF No. 13 as undisputed.

Thus, in light of the analysis above, the court finds there are no legitimate disputes as to any of Defendant's 13 undisputed material facts.

Discussion

Summary of Arguments

Defendant argues that Plaintiff cannot establish actual or constructive notice of any dangerous condition, the alleged defect was open and obvious, and Plaintiff was not exercising due care at the time of the incident. (MPA ISO MSJ, pp. 5:25-8:6.)

Plaintiff argues that summary adjudication is improper when all the elements of Plaintiff's cause of action can be established, Defendant's separate statement is not code-compliant, and that there is a triable issue of material fact relating to whether Defendant's policies created an unsafe condition that cause Plaintiff's injuries and whether Defendant had actual or constructive notice about the alleged unsafe condition. (Opposition, pp. 6-11.) Plaintiff also argues that there is still necessary discovery that needs to be completed. (*Id.* at pp. 11-12; Oviedo Decl. ISO Opposition, ¶ 11.)

On reply, Defendant argues that Plaintiff cannot defeat summary judgment with an attorney declaration, that Plaintiff mixes up notice of an object with notice of a dangerous condition, that the condition was open and obvious, and plaintiff actually saw it before she fell. (Reply, pp. 2-5.) Defendant further argues that Plaintiff caused the incident herself by holding items in both her hands and trying to open the gate with her foot, that unspecified Fire Code references do not save Plaintiff's case, that Plaintiff's Google Maps images do not create a triable issue, that any lack of inspections or defined smoking areas are not relevant, that Plaintiff's request for a continuance should be denied, and that the procedural attack on Defendant's separate statement elevates form over substance. (*Id.* at pp. 5-9.)

Analysis

"The pleadings play a key role in a summary judgment motion and set the boundaries of the issues to be resolved at summary judgment. [Citation.] [T]he scope of the issues to be properly addressed in [a] summary judgment motion is generally limited

to the claims framed by the pleadings. [Citation.] A moving party seeking summary judgment or adjudication is not required to go beyond the allegations of the pleading, with respect to new theories that could have been pled, but for which no motion to amend or supplement the pleading was brought, prior to the hearing on the dispositive motion.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444, internal quotations omitted.)

Here, the Complaint alleges that Defendant negligently created or allowed a dangerous condition to exist on the Property and failed to remedy or warn Plaintiff of that dangerous condition. (Complaint, ¶¶ 6-7.)

However, the undisputed evidence shows that the “danger” was open and obvious and that Plaintiff had seen the object before and knew it was often in that location and even saw the object while she was walking towards it. (UMF Nos. 9, 10, 11.) “Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. [Citation.] In that situation, owners and possessors of land are entitled to assume others will perceive the obvious and take action to avoid the dangerous condition.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 447, internal quotations omitted.) As the “danger” here was open and obvious and known by Plaintiff and even seen prior to the incident, generally, there would be “no further duty to remedy or warn of the condition.” (*Ibid.*) This would be the end of Plaintiff’s case as the Complaint alleges liability based on Defendant’s failure to warn or remedy the alleged dangerous condition. (Complaint, ¶¶ 6-7.)

However, this is not the end of the analysis. Courts have recognized that a duty to remedy may still exist under certain circumstances. The Court in *Johnson v Raytheon Co.* (2019) 33 Cal.App.5th 617 held, “[T]here may be situations ‘in which an obvious hazard, for which no warning is necessary, nonetheless gives rise to a duty on a landowner’s part to remedy the hazard because knowledge of the hazard is inadequate to prevent injury.’ [Citation.] This is so when, for example, the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that, under the circumstances, a person might choose to encounter the danger.” (*Johnson v. Raytheon Co.* (2019) 33 Cal.App.5th 617, 632.) This is colloquially known as the necessity exception to the open and obvious doctrine. Another formulation of it is that “although the obviousness of a danger may obviate the duty to *warn* of its existence, if it is *foreseeable* that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it), there may be a duty to *remedy* the danger, and the breach of that duty may in turn

form the basis for liability” (*Martinez v. Chippewa Enterprises, Inc.* (2004) 121 Cal.App.4th 1179, 1184.) This theory has neither been pled nor argued by Plaintiff. (See Complaint, ¶¶ 1-10, Opposition, pp. 1-12.)

As the scope of Defendant’s initial burden is defined by the pleadings, Defendant has met their initial burden by showing the condition was open and obvious. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18 [“A cross-defendant seeking summary adjudication need only offer evidence to disprove the allegations of the cross-complaint. Should the cross-complainant wish to offer a different factual assertion from that alleged in the cross-complaint, it must move to amend the cross-complaint prior to the hearing on the summary adjudication motion.”].) “Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code of Civ. Proc., § 437c, subd. (p)(2).) Here, although Defendant has met his burden of showing no duty to warn of the stone base for cigarettes due to it being open and obvious and actually known about and seen by Plaintiff prior to the incident, Plaintiff has failed to meet her burden of showing a duty to remedy nonetheless exists under the necessity exception. Not only did Plaintiff not plead anything about necessity in the Complaint, but she has also offered no argument on this topic in her Opposition. (See Complaint, ¶¶ 1-10, Opposition, pp. 1-12.) This requires the Court to grant Defendant’s Motion.

The Court notes that Plaintiff’s Compendium of Exhibits ISO the Opposition violates California Rules of Court rule 3.1350(g), which provides that “If evidence in support of or in opposition to a motion exceeds 25 pages, the evidence must be separately bound and must include a table of contents.” Here, Plaintiff’s 348-page, 7-exhibit compendium does not contain a table of contents. Further, Plaintiff’s compendium violates California Rules of Court rule 3.1110(f), which provides that “electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” Here, Plaintiff’s compendium does not contain bookmarks to its 7 exhibits. The court cautions Plaintiff’s counsel about its future formatting of voluminous exhibits.

Plaintiff’s Request for Continuance

Code of Civil Procedure section 437c, subdivision (h), provides that “[i]f it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a

continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” “The nonmoving party seeking a continuance ‘MUST SHOW: (1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. [Citations.]” (*Frazee v. Seely* (2002) 95 Cal.App.4th 627, 633, all caps in original.)

Here, Plaintiff asks for a 437c(h) continuance at the end of her Opposition, but does not identify what facts she needs, only that she would like to depose employees who aided Defendant’s brother in the property management “and or the Deposition of current Tenants to determine if they may also refute the Defendant and his brother’s statements that the Unsafe Condition didn’t exist on the Subject Property for years. . .” (Opposition, p. 12.) In the Oviedo Declaration in support of the Opposition, it is stated that “Defendants have prevented any communication with existing or former tenants to ascertain how long the unsafe condition existed at the Subject Property, or allow depositions of employees who assisted Mr. Vinh Tu in the Subject Properties management, inspection, and repairs prior to the date [of the] incident.” (Oviedo Decl., ISO Opposition, ¶ 12.)

This Court finds that the desire to depose current tenants “to determine if they may refute the Defendant and his brother’s statements that the Unsafe Condition didn’t exist on the Subject Property for years...” (Opposition p. 12) to be speculative and does not find that Plaintiff has shown that there are facts essential to justify the opposition that may exist but could not be presented because of the identified depositions not having taken place. Both the length of time the “unsafe condition” existed at the Property and the inspection, repair, or management history would not change the result of the ruling on this instant Motion because none of those go towards the necessity exception of the open and obvious doctrine. Thus, the Court denies Plaintiff’s request for a Section 437c(h) continuance.

Defendant’s Objections to Plaintiff’s Evidence

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion.” (Code of Civ. Proc., § 437c, subd. (q).) Here, the Court finds that it need not rule on Defendant’s objections as they are not material to the disposition of this motion.

Ruling

The Court **GRANTS** Defendant's motion for summary judgment.

4. 9:00 AM CASE NUMBER: C23-02566
CASE NAME: ALFRED GARZA VS. AMERIT FLEET SOLUTIONS, INC.
*HEARING ON MOTION IN RE: APPROVAL OF PAGA SETTLEMENT
FILED BY: GARZA, ALFRED
TENTATIVE RULING:

The Court grants Plaintiff's Unopposed Motion for Approval of PAGA Settlement/Final Judgment. The court shall sign the Proposed Order lodged with the Court on March 13, 2026. The Parties shall file a joint status report and declaration from the Administrator by September 11, 2026, advising the Court of the distribution of settlement funds. **The Court sets September 24, 2026 at 8:30 am in Dept. 32 for an Order to Show Cause re: Compliance with PAGA Settlement.**

5. 9:00 AM CASE NUMBER: C23-02622
CASE NAME: LIBERTY BUSINESS ADVISORS OF SAN FRANCISCO, INC. VS. TOOV, INC.
*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: LIBERTY BUSINESS ADVISORS OF SAN FRANCISCO, INC.
TENTATIVE RULING:

Plaintiff Liberty Business Advisors of San Francisco, Inc.'s Motion for Leave to File a First Amended Complaint ("FAC") is **granted**. Plaintiff shall prepare and submit the order, file and serve notice of entry of order, and file the FAC within 10 days of the hearing.

Background

Plaintiff Liberty Business Advisors of San Francisco, Inc. filed this action against defendant Toov, Inc. to recover broker commissions allegedly owed under two listing agreements, one covering the sale of Toov's gas station business and one covering associated property at 1744 West San Carlos Street in San Jose. Toov had entered into an asset purchase agreement and a companion purchase and sale agreement to sell the business and property to Kesar Petroleum, Inc. Those transactions did not close. Kesar pursued a claim in arbitration against Toov to recover its deposit, and Toov ultimately released the deposit to Kesar, and paid Kesar an additional sum to resolve the dispute. Plaintiff alleges that under the terms of its listing agreements, Toov's default nonetheless triggered an obligation to pay plaintiff commissions in excess of \$225,000. The original complaint, filed against Toov and fictitiously named defendants, pleaded ten causes of action sounding in breach of contract.